

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JANUARY 27, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **P22-01242** **ESTATE OF: SHERRI CALLINAN**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION UPON WAIVERS OF ACCOUNTING; FOR
ALLOWANCE OF ATTY'S FEES FOR ORDINARY SERVICES; WAIVER OF ADMINISTRATOR FEES FOR
ORDINARY SERVICES; REIMBURSEMENT OF COSTS ADVANCED FILED ON 9-2-25 BY JEREMY CALLINAN

Need:

1. Waiver of Accounting by heirs of Estate of Scott Callinan or Accounting that complies with PrC § 1060 *et seq.* The personal representative has a fiduciary duty to protect their interests, and cannot use his fiduciary position to relieve himself of the obligation to provide an accounting in this proceeding. Petitioner is personal representative of this estate and personal representative of Estate of Scott Callinan.
2. Verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
3. Proposed Order

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2. **P23-01465** **ESTATE OF: ELOISE FRAZIER**
9:00 AM HEARING IN RE: AMENDED REPORT OF SALE & PETITION FOR ORDER CONFIRMING SALE OF REAL
PROPERTY FILED ON ~~9-1-25~~ 9-2-2025 BY DONALD GOSSETTE

Drop.

Note: Order Confirming Sale of Real Property filed 12-2-2025.

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3. 9:00 AM	P23-01950 ESTATE OF: LESLIE ALMEIDA HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNT, FOR ALLOWANCE OF ATTY'S STATUTORY FEES & COSTS ADVANCED FILED ON 9-8-25 BY BRANDY & NICOLE ALMEIDA Need: Verified declaration by petitioner to include page 3 of Petition for Probate. Page 3 is not on file.
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4.	P23-02144	MATTER OF: HUPPERT FAMILY TRUST
9:00 AM	HEARING IN RE: PETITION TO APPROVE THE FIRST ACCOUNT OF SUCCESSOR TRUSTEE FILED ON 12/10/24 BY RONALD H. HUPPERT	
	Need appearances to report status	
	Notes: a. Response and Objection of Ronald Huppert filed 4-30-2024. b. Per 4-22-2025 minute order, atty. David Parnall appeared for Annelise Huppert in objection, and court ordered objections to be filed by 5-6-2025. c. Objection filed by Annelise Huppert 5-6-2025.	

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5. 9:00 AM	P24-00883 ESTATE OF: RONA SARAEL HEARING IN RE: 1ST & FINAL REPORT OF ADMINISTRATOR, PETITION FOR FINAL DISTRIBUTION, PAYMENT & REIMBURSEMENT OF COSTS FILED ON 4-14-25 BY HUDSON SARAEL Need: 1. Appearances 2. Verified declaration by petitioner to include terms of testamentary trust <u>exactly</u> as stated in Will admitted 7-15-2024. CRC 7.650 3. Revised, proposed Order to specify plan of distribution and to include terms of testamentary trust. LR 7.101; 7.307 Notes: Trust must be expressed in operative terms, in 3rd person. <i>California Rules of Court § 7.650. Decree of distribution establishing testamentary trusts</i> <i>(b) Terms of the trust</i> <i>The order for distribution must incorporate the terms of the trust so as to give effect to the conditions existing at the time distribution is ordered. The pertinent provisions must be stated in the present tense and in the third person instead of quoting the will verbatim.</i> Petitioner requests appointment as trustee of testamentary trust; however, she is not named in trust. Trust waives bond for named trustee at Article 3.09.
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6. 9:00 AM	P24-01991 ESTATE OF: ANTOINETTE NIXON HEARING IN RE: FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR APPROVAL THEREOF AND FOR FINAL DISTRIBUTION & FOR COSTS & COMPENSATION TO ATTYS FOR ORDINARY SERVICES, WAIVER OF COMPENSATION TO ADMINISTRATOR FILED ON 9-2-25 BY ANTOINETTE S BROWNLOW Need: 1. Satisfaction of Truist Bank claim; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353 2. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317 Note: Attorney requests reimbursement of \$50 for filing Petition for Discharge. There is no fee for discharge and court has revised proposed Order to allow reimbursement of \$550. Statutory fee calculation at page 6 does not reflect loss on Lexus; however, attorney requests reduced statutory fees.
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**7A. P24-01994 MATTER OF: DAVID COOPER, TRUSTEE OF THE LAWRENCE AND TAKA BRENNAN
FAMILY TRUST DATED JANUARY 5, 2010**

9:00 AM HEARING IN RE: NOTICE OF AND MOTION TO COMPEL FURTHER RESPONSES TO 1) FORM
INTERROGATORIES, SET ONE, 2) REQUEST FOR ADMISSION, SET 1, REQUEST FOR PRODUCTION OF
DOCS SET 1, AWARD OF MONETARY SANCTIONS AGAINST RESP & COUNSEL FILED ON 5-21-25 BY
DAVID COOPER

Need appearances to report status, including mediation ordered 7-29-2025

Notes:

1. Reply filed 10-2-2025.
2. Response and Opposition filed by Evor Vattuone 1-13-2026.
3. Trial is set for 2-18-2026 and 2-20-2026 at 1:30 p.m.

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**7B. P24-01994 MATTER OF: DAVID COOPER, TRUSTEE OF THE LAWRENCE AND TAKA BRENNAN
FAMILY TRUST DATED JANUARY 5, 2010**

9:00 AM HEARING IN RE: STATUS OF MEDIATION

Need appearances to report status, including mediation ordered 7-29-2025

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- 9.** **P24-02046** **ESTATE OF: ALLEN GARFEIN**
9:00 AM HEARING IN RE: FIRST & FINAL REPORT OF PERSONAL REPRESENTATIVE & PETITION FOR FIANL DISTRIBUTION ON ACCOUNT FILED ON 9-1-25 BY GLEN J GARFEIN
- Need:
1. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
 2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
 3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. Notice is not attached to Proof of Service filed 10-29-2025.
 4. Letters Testamentary issued
 5. Verified declaration by petitioner to show that notice of administration was given to the Franchise Tax Board. PrC § 9202(c)(1)
 6. Verified declaration by petitioner to specify whether notice of administration was given to the Dept. of Child Support Services. PrC § 9202(e)
 7. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
 8. Waiver of Accounting by all beneficiaries or Accounting that complies with PrC § 1060 *et seq.*
 9. Verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived
 10. Authority for preliminary distributions without a court order as indicated at page 2, ¶ 14
 11. Inventory and Appraisal filed
 12. Verified declaration by petitioner to clarify whether a Federal estate tax return (Form 706) was filed
 13. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
 14. Proposed Order

Note: Court will continue this matter to allow sufficient time for Creditor's Claim period to expire. No letters have issued.

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10A.

9:00 AM

P25-00516

ESTATE OF: NICKOLAI POPOV

HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH IAEA FILED
ON 4/16/2025 BY ALEXANDER POPOV

Need:

1. Appearances
2. Verified declaration by petitioner to include ages and relationships of persons listed in "Service List." PrC § 8002
3. Verified declaration by petitioner to include name and date of death of predeceased spouse. LR 7.151(d)
4. Lodge Original Will (w/legal process). PrC § 8200
5. Evidence to overcome presumption of revocation by the fact that the original cannot be located. PrC § 6124
6. Proof of mailing notice that will is lost. PrC § 1202
7. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

Note: Opposition by Michael N. Popov filed 8-28-2025.

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10B.

9:00 AM

P25-00516

ESTATE OF: NICKOLAI POPOV

~~HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH IAEA FILED ON 4-16-25 BY ALEXANDER POPOV~~

HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY WITH ON 4-16-25 BY ALEXANDER POPOV IAEA FILED PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY WITH IAEA FILED 03/24/25 BY MICHAEL N POPOV

Need appearances

Notes:

- a. Letters of Special Administration issued to Michael N. Popov 4-2-2025 will expire 12-28-2025.
- b. Objection of Alexander Popov filed 4-16-2025.

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10C. P25-00516 ESTATE OF: NICKOLAI POPOV

9:00 AM

HEARING IN RE: MOTION TO SET ASIDE FILED BY ALEXANDER POPOV ON 05/08/2025

Need:

1. Appearances
2. Proposed Order

Notes:

- a. Letters of Special Administration issued to Michael N. Popov 4-2-2025 were extended, pursuant to Order filed 12-15-2025.
- b. Opposition of Michael N. Popov filed 09/16/25.

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10D.

9:00 AM

P25-00516

ESTATE OF: NICKOLAI POPOV

HEARING IN RE: MOTION TO STAY FILED BY ALEXANDER POPOV ON 12/05/2025

Need:

1. Appearances
2. Proposed Order

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10E.

9:00 AM

P25-00516

ESTATE OF: NICKOLAI POPOV

HEARING IN RE: PETITION FOR INSTRUCTIONS TO HIRE COUNSEL FOR CIVIL LITIGATION [PROBATE CODE 9823] FILED ON 7-18-25 BY MICHAEL POPOV

Need appearances

Note: Objection by Alexander Popov is lodged in court file. Register of actions does not indicate objection has been filed with the court.

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15.

9:00 AM

P25-00569

ESTATE OF PATRICIA G. URHAUSEN

HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR ON WAIVER OF ACCOUNT & PETITION FOR ALLOWANCE OF STATUTORY COMPENSATION TO ATTORNEY, REIMBURSEMENT OF COSTS & FOR FINAL DISTRIBUTION FILED ON 9-2-25 BY PETER ALEXANDER URHAUSEN

Need:

1. Identification of and waivers of accounting from presumptive contingent remainder beneficiaries of the trust. The Trustee has a fiduciary duty to protect their interests, and cannot use his fiduciary position to relieve himself of the obligation to provide an accounting in this proceeding. Trustee and personal representative are the same person.
2. Accounting that complies with PrC § 1060 *et seq.*, unless account is waived
3. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice so court can confirm mailing. LR 7.112
4. Verified declaration by petitioner to clarify whether any creditor's claims were received and/or filed. Creditor's Claim period ended 10-4-2025; however, petition was filed 9-2-2025.

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16. P25-01008 ESTATE OF: FRANCES DOWNING

9:00 AM HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 06/05/25 BY
DIANA L. ADAMS

Need appearances

Notes:

1. If granted, bond will be fixed at \$964,000.00.
2. Per 9-8-2025 minute order, court ordered objections to be filed and served by 10-17-2025, or objections will be deemed waived.
3. Objection of Chris Downing filed 10-17-2025.

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17. 9:00 AM	P25-01568 HEARING IN RE: PETITION FOR AN ORDER CONFIRMING TRUST PROPERTY FILED BY CHRISTIANA BERNADETTE OLIVAS ON 09/04/2025 Need appearances	MATTER OF: THE WALTER A. REIMANN TRUST
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